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1. General

An invention can be patented only if it is new. An invention is considered to be new if it does not form part of the state of the art. The purpose of Art. 54(1) EPC is to prevent the state of the art being patented again (T 12/81, OJ 1982, 296; T 198/84, OJ 1985, 209).

The first step in deciding whether an invention is new is to define the prior art, the relevant part of that art, and the content of that relevant art. The next is to compare the invention with the prior art thus defined, and see whether the invention differs from it. If it does, the invention is novel.

As part of the EPC 2000 revision, several amendments were made to Art. 54 EPC. Art. 54(1) and (2) EPC remained unchanged. In Art. 54(3) EPC 1973 a reference to Art. 93 EPC was removed. Art. 54(4) EPC 1973 was deleted, so that any European application falling under Art. 54(3) EPC constitutes prior art with effect for all the EPC contracting states at the time of its publication. The amendment to Art. 54(5) EPC 1973 (now Art. 54(4) EPC) took account of the deletion of Art. 54(4) EPC 1973 and the incorporation of Art. 52(4) EPC 1973 into Art. 53(c) EPC (exceptions to patentability). New Art. 54(5) EPC now eliminates any legal uncertainty on the patentability of further medical uses. It unambiguously permits purpose-related product protection for each further new medical use of a substance or composition already known as a medicine (see OJ SE 4/2007).

2. State of the art

2.1. General

Under Art. 54(2) EPC, the state of the art comprises everything made available to the public by means of a written or oral description, by use, or in any other way, **before** the filing or priority date of the European patent application.

As a rule, there are no restrictions as to where, how or in what language the relevant information must have been made available to the public; nor is any limit stipulated as to how old the documents or other sources of the information may be.

2.2. Applications with same filing or priority date

An application with the same filing or priority date as the application to be examined is not part of the state of the art (see T 123/82).

2.3. Relevant date of documents

For the purposes of determining novelty, a prior document should be read as it would have been read by a person skilled in the art on its "relevant date". The relevant date of a previously published document is its publication date, and that of a document within the meaning of Art. 54(3) EPC its date of filing (or, as the case may be, priority date) (Guidelines G-VI, 3 – November 2018 version).

According to the boards' established case law, for ascertaining the disclosure of a document forming part of the state of the art within the meaning of Art. 54(2) EPC, the relevant date is that of publication (see T 205/91, T 737/00, T 1162/07). The date is conveniently taken as the publication date of the document, because in normal situations, the meaning to be attributed to the various technical terms of the document does not vary until its publication so that its content can be analysed as if it had been written on the date it was made available to the public. In the particular situation in the case in hand, however, where a technical term such as a trade name was known to have been abandoned between the filing or priority date and the publication date, this circumstance is to be taken into account (T 2020/13).

For the purposes of examining novelty, a document is to be assessed from the perspective of the skilled person on the publication date, T 305/94. Interpreting a document using knowledge which only became available to the relevant experts between the publication date of the cited prior art and the filing or priority date of the application to be examined or the patent in dispute is an issue relating to **inventive step, not novelty** (see T 205/91).

2.4. Prior rights – Article 54(3) EPC

2.4.1 European prior rights

Pursuant to Art. 54(3) EPC the content of European patent applications as filed, the dates of filing of which are prior to the date referred to in Art. 54(2) EPC and which were published on or after that date, shall be considered as comprised in the state of the art. However, such earlier applications are part of the state of the art only when considering novelty and **not when considering inventive step**. The "date of filing" referred to in Art. 54(2) and (3) is thus to be interpreted as meaning the date of priority in appropriate cases (see also Guidelines G-IV, 5.1 – March 2022 version).

As part of the 2000 revision of the EPC, former Art. 54(4) EPC 1973 was deleted, so that any European application falling under Art. 54(3) EPC constitutes prior art with effect for all the EPC contracting states at the time of its publication. The revised Art. 54(3) EPC is applicable to European patent applications filed on or after the time the EPC 2000 entered into force. The deleted Art. 54(4) EPC 1973 is still applicable to European patents already granted and applications pending at the time the EPC 2000 entered into force.

In T 1926/08, in order to establish novelty with respect to document D1, the patent proprietors had filed two sets of claims for different contracting states. The patent at issue was granted before the date of entry into force of the EPC 2000. The point of dispute was whether or not R. 87 EPC 1973 was a rule implementing Art. 54(4) EPC 1973, or whether the situation was covered by Art. 123 and R. 138 EPC. R. 87 EPC 1973 allowed different claims, description and drawings for different states both in the case of an earlier European patent application which was part of the state of the art under Art. 54(3) and (4) EPC 1973 and when a prior national right existed, while R. 138 EPC 2000 only provided for the latter case. The board held that R. 87 EPC 1973 applied to European patents granted before the entry into force of EPC 2000 because it is an implementing regulation to Art. 54(4) EPC 1973 and admitted a separate set of claims.

In J 5/81 (OJ 1982, 155) the board held that a published European patent application became part of the state of the art under Art. 54(3) EPC 1973, with retroactive effect as from its filing date or priority date, for assessing applications filed after that filing date or priority date but prior to its publication, but that this should only apply if such a "prior application" was still in existence at the time of publication.

In T 447/92 the whole contents of an earlier document within the meaning of Art. 54(3) and (4) EPC 1973 had to be considered as forming part of the state of the art as far as novelty was concerned. The board pointed out that the boards of appeal had consistently applied a very restrictive interpretation of disclosure in order to reduce the risk of self-collision. To do otherwise would, in the board's view, undesirably undermine the exclusion from consideration of documents within the meaning of Art. 54(3) EPC 1973 when deciding whether there had been an inventive step.

2.4.2 Applicability of Article 54(3) EPC in cases of potentially colliding European parent and divisional applications

In T 557/13 of 17 July 2015 several questions concerning partial priorities were referred to the Enlarged Board of Appeal (G 1/15, OJ 2017, A82), see in particular question 1 and 5: 1. Where a claim of a European patent application or patent encompasses alternative subject-matters by virtue of one or more generic expressions or otherwise (generic "OR"-claim), may entitlement to partial priority be refused under the EPC for that claim in respect of alternative subject-matter disclosed (in an enabling manner) for the first time, directly, or at least implicitly, and unambiguously, in the priority document? 5. If an affirmative answer is given to question 1, may subject-matter disclosed in a parent or divisional application of a European patent application be cited as state of the art under Art. 54(3) EPC against subject-matter disclosed in the priority document and encompassed as an alternative in a generic "OR"-claim of the said European patent

application or of the patent granted thereon? See chapter II.D.5.3. "Multiple priorities or partial priority for one claim". Question 1 was answered in the negative by G.1/15 (OJ 2017, A82). As a consequence, questions 2, 3, 4 and 5 did not need to be dealt with.

2.4.3 Excluded national prior rights

In T 550/88 (OJ 1992, 117) the board made it clear that, on the proper interpretation of Art. 54(3) EPC 1973, prior national rights were not comprised in the state of the art. The effect of a prior national right upon a European patent was a matter purely for national law, whereas the effect of a prior European application upon a European patent was specifically provided for in Art. 54(3) EPC 1973 (which might also be a ground for revocation under national laws by virtue of Art. 138(1)(a) EPC 1973). In other words, the combined effect of Art. 138(1) and 139 EPC 1973 was to provide an additional possible ground for revocation under national laws based upon the existence of a prior national right, which was not available under Art. 54 EPC 1973.

In T 1698/09 the board observed that, under Art. 54(3) EPC, the state of the art comprised the content of European patent applications filed before the priority date of the patent in suit and published after that date. It held that a German utility model was not a German or a European patent application. It made no difference that Germany had been designated in the patent in suit.

2.4.4 PCT applications as state of the art

Art. 153(5) EPC states that a Euro-PCT application shall be considered as comprised in the state of the art under Art. 54(3) EPC if the conditions laid down in Art. 153(3) or (4) EPC "and in the Implementing Regulations" are fulfilled.

Pursuant to R. 165 EPC a Euro-PCT application shall be considered as comprised in the state of the art under Art. 54(3) EPC if in addition to the conditions laid down in Art. 153(3) or (4) EPC (publication of the international application or its translation), the filing fee under R. 159(1)(c) EPC has been paid. Thus once the filing fee is paid for the conflicting application, it is considered to be an Art. 54(3) EPC application.

Under former Art. 158(2) EPC 1973, a Euro-PCT application was considered to be an Art. 54(3) EPC application if a translation was filed (where necessary) and the national fee paid.

In T 404/93 the European patent application was limited to the contracting states Italy (IT), Netherlands (NL) and Sweden (SE) in view of an earlier international application, published after the filing date of the former. The board noted that the earlier PCT application had mentioned several EPC contracting states, including IT, NL and SE, as being designated for a European patent. However, when the earlier application had entered the European phase, no designation fees had been paid for IT, NL and SE. Accordingly, the board found that the earlier international application was not comprised in the state of the art under Art. 54(3) EPC 1973 for IT, NL and SE (see also T 623/93).

In T 622/91 the respondent (patent proprietor) requested that the decision under appeal be set aside and the patent maintained for all designated contracting states. Two earlier international applications and the European patent had designated the contracting state France (FR). The board noted that the requirements of Art. 158(2) EPC 1973 (now Art. 153(3) and (4) EPC and R. 159 EPC) were fulfilled, and considered the international applications as comprised in the state of the art relevant to the patent in suit in accordance with Art. 54(3) and Art. 158(1) EPC 1973 (now Art. 153(5) EPC). The board went on to examine claim 1 of the main request and found that the earlier application was novelty-destroying in so far as the same contracting state FR was designated.

In T 1010/07 the board held that E4, a document cited in relation to inventive step which had been published before the priority date of the contested patent, was a publication under Art. 158(3) EPC 1973, i.e. the publication of a translation supplied to the EPO under Art. 158(2) EPC 1973 into an EPO official language (English) of an international application not published in an official language (Japanese). Although translations under Art. 158(2) EPC 1973 were not checked by the EPO, it was presumed that their content was identical to that of the published international application (see e.g. T 605/93). Only when there were reasonable grounds to doubt this presumption in a particular case was further investigation and, where necessary, the production of evidence required. Thus, as a translation of identical content, E4 was to be regarded as forming part of the prior art.

2.5. Non-prejudicial disclosures under Article 55 EPC

Art. 55 EPC specifies that a disclosure of the invention shall not be taken into consideration for the application of Art. 54 EPC, if it occurred no earlier than six months preceding the filing of the European patent application and if it was due to, or in consequence of: (a) an evident abuse in relation to the applicant or his legal predecessor, or (b) the fact that the applicant or his legal predecessor has displayed the invention at an official, or officially recognised, international exhibition.

In consolidated cases G 3/98 (OJ 2001, 62) and G 2/99 (OJ 2001, 83) the Enlarged Board ruled that, when calculating the six-month period under Art. 55(1) EPC 1973, the relevant date is that of the actual filing of the European patent application, not the priority date.

In T 173/83 (OJ 1987, 465) the board ruled that there would be evident abuse within the meaning of Art. 55(1)(a) EPC 1973 if it emerged clearly and unquestionably that a third party had not been authorised to communicate to other persons the information received. Thus there was abuse not only when there was the intention to harm, but also when a third party acted in such a way as to risk causing harm to the inventor, or when this third party failed to honour the declaration of mutual trust linking him to the inventor.

In T 585/92 (OJ 1996, 129) the board found that where a patent application was published early by a government agency as a result of an error, this was not of necessity an abuse in relation to the applicant within the meaning of Art. 55(1)(a) EPC 1973, however unfortunate and detrimental its consequences might turn out to be. In order to determine whether there was an abuse within the meaning of Art. 55(1)(a) EPC 1973, the state of mind of the "abuser" was of importance.